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Attorneys for Tyler James Robinson

IN THE FOURTH JUDICIAL DISTRICT COURT, PROVO DEPARTMENT
IN AND FOR THE COUNTY OF UTAH, STATE OF UTAH

STATE OF UTAH,

Plaintiff,

vs.

TYLER JAMES ROBINSON,

Defendant.

**DEFENDANT TYLER JAMES
ROBINSON'S REPLY TO OPPOSITION
TO MOTION FOR AN ORDER TO
SHOW CAUSE FOR ALLEGED
CONTEMPT OF COURT AND FOR AN
ORDER COMPELLING DISCOVERY
RELATED TO THE ALLEGED
CONTEMPT**

Case No. 251403576

Honorable Tony F. Graf, Jr.

The prosecution's Opposition brief concedes that extrajudicial statements were made by a member of the prosecution team to multiple media outlets commenting on the ATF's conclusions arising from forensic testing of the bullet fragments that are alleged to have caused the death of Charlie Kirk. These extrajudicial statements opined that the forensic analysis of the bullet fragments was accurate because it was supported by data that had not yet been produced. The prosecution also concedes that their extrajudicial statements were designed to be publicly disseminated as they admit the purpose of the statements was to counteract what they perceived to be unduly prejudicial publicity. Finally, the prosecution concedes that their extrajudicial statements to the press included Mr. Ballard's opinion that the prosecution team had ample evidence to prove Tyler Robinson guilty beyond a reasonable doubt and overcome his presumption of innocence.

The prosecution has failed to rebut the facts recited in paragraphs 20-28 of the Defendant's Declaration of Counsel in Support of Motion for Issuance of Show Cause Order (Doc. 505) that their extrajudicial statements were conveyed directly to TMZ, USA Today, Politifact and The Standard and that Mr. Ballard appeared on camera with Fox News' Fox & Friends to make the statements in person.

In light of all of these factual concessions, all that remains is for this Court to follow the roadmap set forth by the Supreme Court of Utah in the cases of *Von Hake v. Thomas*, 759 P.2d 1162 (1988), and *In the Matter of the Discipline of: David O. Leavitt*, 2025 UT 46, 579 P.3d 343, and Utah Code § 78B-6-301(5) and make the following findings:

ORDER TO SHOW CAUSE

1. This Court's *Protection Order re Pre-Trial and Trial Publicity* issued on September 16, 2025. Doc. 23.

2. The Pretrial Publicity Order mandated the lawyers “shall abide strictly by Rule 3.6 of the Utah Rules of Professional Conduct” and are prohibited from making any extra-judicial statements “the lawyer knows or reasonably should know will be disseminated by means of public communication and will have a substantial likelihood of materially prejudicing an adjudicative proceeding in the matter.” Comment [5] of the rule specifies that certain subject matters are more likely to have a prejudicial effect, including:
 - a. “the performance or results of any examination or test . . . or the identity or nature of physical evidence expected to be presented;”
 - b. “any opinion as to the guilt or innocence of a defendant or suspect in a criminal case or proceeding that could result in incarceration;”
 - c. “the fact that a defendant has been charged with a crime, unless there is included therein a statement explaining that the charge is merely an accusation and that the defendant is presumed innocent until and unless proven guilty[.]”
3. Counsel for the State, specifically Mr. Gray and Mr. Ballard, were aware of this Order. This finding is supported by the record where the State filed a motion to amend the Pretrial Publicity Order. *See* Doc. 167. Mr. Gray’s name is on the pleading and the pleading is signed by Mr. Ballard.
4. The State also demonstrated an awareness of the rules governing extra-judicial statements in correspondence to governmental agencies at the outset of the case, before this Court issued its Order. *See, e.g.,* Doc. 358 (Attachment D to *State’s Memorandum Opposing Defendant’s Motion to Exclude Still Photographers, TV Cameras and Microphones from the Courtroom*). The State has not contested awareness of the Court’s order, nor its obligations under Rule 3.6.

5. Despite this awareness, beginning March 31, 2026 through April 2, 2026, Mr. Ballard communicated with multiple media agencies regarding a court filing. *See Declaration of Counsel in Support of OSC*, ¶¶ 20-28. Mr. Ballard commented on the results of forensic testing and opined on the strength of the State’s case, emphasizing there was “ample evidence to demonstrate beyond a reasonable doubt that Tyler Robinson committed this murder[.]” *Id.* ¶ 28. The State acknowledges making these statements.
6. The Court has considered the State’s argument that the safe harbor provision found in Rule 3.6(c) shields Mr. Gray and Mr. Ballard’s conduct. This provision is not applicable here because it only applies when statements are made *in response to statements made publicly by another party or another party’s lawyer*. Said portion of the Rule is focused on extrajudicial statements, NOT statements in pleadings.¹ To hold otherwise would create an exception that

¹ It is also noteworthy that the comparable ABA Rule contains no exception for responsive comments. The Commentary states:

Unlike the prior edition of these Standards, the revised edition does not give prosecutors blanket permission to repeat “information contained within a public record, without further comment.” The rationale for deleting such an exception is that the exception in too many instances will swallow the rule. It also poses interpretative problems-and therefore leads to uncertainty-without an a priori definition of what constitutes a “public record.” Moreover, the dangers posed by prosecutorial statements about the matters identified in Standard 8-2.2(a) are not diminished due to the fact that such information also is contained in a public record. Eliminating the exception for information contained in a public record diminishes the opportunity for the creation of the video or audio “sound bite” that tends to be played repeatedly in various media forms.

Similar reasons motivated the decision not to include in this edition of the Standards an exception for prosecutorial statements that are responsive to statements by another party or source. No such exception appeared in the prior edition, although a version of it appears in Model Rule 3.6. Such responsive statements invite an arms race of extrajudicial statements. However, should a prosecutor personally be accused of misconduct, the prosecutor would be permitted to respond, pursuant to Standard 8-2.1(d).

would swallow the rule. Mr. Ballard himself has acknowledged that statements in pleadings are not extrajudicial statements. *See* Exhibit B attached hereto.

7. Mr. Gray and Mr. Ballard have not shown that the defense made any public statements in this case warranting the extrajudicial statements at issue. The statement in defendant's motion to continue that allegedly prompted the prosecutor to express his personal opinion about the strength of the evidence against Mr. Robinson was the following:

“Regarding the firearm evidence, the defense has been provided with an ATF summary report which indicates that the ATF was unable to identify the bullet recovered at autopsy to the rifle allegedly tied to Mr. Robinson. Although the State has not indicated an intent to produce this report at the preliminary hearing, the defense may very well decide to offer the testimony of the ATF firearm analyst as exculpatory evidence. In order to make this determination, it is necessary for the defense and its firearm expert to review the ATF case file and protocols relating to this examination, which have not yet been provided.”
Dkt. 466 at 22.

There is nothing inaccurate or misleading in this statement. The referenced ATF report states that: “The Exhibit 6A bullet jacket fragment could not be identified or excluded as having been fired from the Exhibit 1 rifle based on an agreement of all discernible class characteristics and neither sufficient agreement nor sufficient disagreement of individual characteristics. The result of the comparison was inconclusive. Firearms that produce general rifling characteristics similar to those observed on the Exhibit 6A bullet jacket fragment include numerous makes and models.” (Exh. 2 to Doc. 284) What the prosecutor was in truth responding to in his press statements was not the defense's description of the ATF's report. but the media's mischaracterization of that description, including such blaring headlines as

American Bar Association, *Fair Trial and Public Discourse*, 44 (4th Ed. 2013) (footnotes omitted), available at https://www.americanbar.org/groups/criminal_justice/resources/standards/fair-trial-public-discourse/.

“Bullet used to kill Charlie Kirk did NOT match rifle allegedly used by suspect Tyler Robinson, new court filing claims”, Daily Mail, <https://www.dailymail.com/news/article-15692625/Tyler-Robinson-bullet-rifle-match-Charlie-Kirk.html>.

Indeed, the Executive Producer of the Charlie Kirk show labelled this mischaracterization as “media malpractice.”

See, BREAKING NOW: Charlie Kirk Show Executive Producer Andrew Kolvet dispels misinformation in wake of new court filings from defense,

<https://www.facebook.com/TheStoryFNC/videos/breaking-now-charlie-kirk-show-executive-producer-andrew-kolvet-dispels-misinfor/3201242723515761/>. The defense is not

responsible for such media malpractice. The state, on the other hand, could have avoided it by not opposing the defense’s request to keep the ATF report under seal.

8. The Court also notes its concern with the State’s motivation. If Mr. Gray and/or Mr. Ballard believed that the defense misrepresented testing results to the Court in the motion to continue, the State had the opportunity to respond with its concern in its own pleading. The State chose not to (*see* Doc. 476), instead choosing to make extra-judicial statements. This demonstrates to the Court that the purpose for the statements was primarily for the purpose of influencing public opinion about factual matters in the case. This is expressly prohibited.
9. Therefore, the extrajudicial statements made by Mr. Ballard on behalf of Mr. Gray and the Utah County Attorney’s Office violated Rule 3.6 of the Utah Rules of Professional Conduct. The prosecution knew they would be disseminated by means of public communication and had a substantial likelihood of materially prejudicing this proceeding. Specifically, the statements fit the type of statements more likely than not to have a material prejudicial effect on a criminal proceeding because they involved the subject matter specifically warned

against in Comment [5](iii) & (iv) to Rule 3.6 (the result of tests, the nature of physical evidence expected to be presented, and an opinion as to the guilt of the defendant).

10. Because the prosecution's extrajudicial statements violated Rule 3.6, their dissemination violated this Court's *Protection Order Re: Pre-trial and Trial Publicity*, entered on September 16, 2025.
11. Utah Code § 78B-6-309 sets forth a requirement that this Court must conduct a "show cause" hearing prior to finding a party in contempt or imposing any particular remedies for violating this Court's *Pre-Trial and Trial Publicity Order*.
12. During the "show cause" hearing, and before this Court can reach conclusions about the scope of the contemptuous conduct and the remedies that are appropriate, the Court must undertake a very careful and searching factual inquiry.² The attached Exhibit A lays out a detailed comparison between the facts already known in this case and the facts that existed in the *Leavitt* case and includes the Supreme Court's comments verifying that these facts and circumstances are sufficient to justify at the very least a "show cause" hearing and most likely the imposition of significant remedies under the law.
13. Therefore, the Court should issue the concurrently filed Order to Show Cause.

MOTION TO COMPEL DISCOVERY

14. In conjunction with the request for an order to show cause, Mr. Robinson requests an order compelling the State to produce:
 - a. True and correct copies of any and all written statements by or on behalf of any representative of the UCAO and any media entity regarding any and all aspects of this case between March 26, 2026 and the date of the response to this request.

² See generally *In the Matter of the Discipline of David O. Leavitt*, 2025 UT 46, 579 P.3d 343.

- b. A comprehensive list of all UCAO written, in person, virtual, and/or telephonic contacts with media entities regarding this case between March 26, 2026, and the date of the response to this request. This list should include the date and approximate time of each contact and the full names of all individuals involved in each contact.
 - c. True and correct copies of all written or otherwise memorialized communications between the UCAO and media entities referenced in request (b).
 - d. True and correct copies of all UCAO written or otherwise memorialized internal communications discussing the potential or actual content of communications between the UCAO and media entities concerning this case in the time period referenced above. This includes all communications related to the drafting, editing, approving, or otherwise addressing potential or actual written or oral statements to media entities among any and all employees of the UCAO, including but not limited to, all members of the prosecution team.
15. The defense has shown good cause in support of the motion to compel. *See State v. Steffen*, 2020 UT App 95, ¶ 31, 468 P.3d 568 (“To show good cause, Rule 16 requires only that the [party] ‘establish the materiality of the requested records to the case.’” (quotation omitted)).
16. Mr. Robinson’s motion to compel the production of discovery related to the contemptuous conduct is a limited inquiry designed to discover additional facts and circumstances surrounding the dissemination of the extrajudicial statements, which will assist this Court in the factual inquiry required by the Supreme Court of Utah as set forth in *Leavitt*, 2025 UT 46 and as required by Utah Code § 78B-6-309.
17. For example, the defense is seeking the actual correspondence between the prosecution and the media outlets referenced in the media articles noted in the *Declaration of Counsel* to

assist in determining the full content of the correspondence, the source of the statements, and whether the prosecution was misquoted or taken out of context in any way. These communications are material to the contempt issue and the potential remedy. These communications bear on the issue of whether the public statements were made with malice, extreme recklessness, and/or awareness that the conduct was violative of the Order.

18. The State has waived³ any work product privilege to materials transmitted to third parties. *See, e.g., Steffens*, 2020 UT App 95, ¶ 31 (citing *In re Echostar Comm'cns Corp.*, 448 F.3d 1294, 1302 (Fed. Cir. 2006) for proposition that work product privilege waiver extends to “the same subject matter as the disclosed work product”). These materials are not protected from disclosure by Utah R. Crim. P. 16(a)(6).
19. The only category of document requested that could arguably be categorized as work product would be the internal emails discussing the drafting, editing and dissemination of the statements; however, this is the exact information that the Supreme Court of Utah found compelling when deciding whether Leavitt violated the pretrial publicity rule.⁴ And again, the result of the communications was wide distribution in the public.

³ *See, e.g., Utah R. Evid. 510* (defining waiver of privilege if the privilege holder voluntarily discloses “any significant part of the matter or communication” or “fails to take reasonable precautions” against disclosure).

⁴ The Supreme Court of Utah relied extensively upon the County Attorney office’s internal communications about the extrajudicial statements when deciding *Leavitt*.

Immediately after the press conference, Leavitt returned to his office to find Weiss “quite animated because of the extrajudicial statement which [Leavitt] made.” Weiss was “extremely adamant” that Leavitt should not have made the statements, and he predicted a motion to disqualify the Office from the case. Leavitt and Weiss specifically discussed whether any of his comments would have a substantial likelihood of materially prejudicing a jury. Weiss argued that Leavitt should wall himself off from the case, which Leavitt did, despite the fact

20. The County's refusal to produce the requested discovery materials impedes the Court from discovering the seriousness of the violations and even who participated. It is notable that long before the Supreme Court of Utah approved the discipline of Leavitt, the trial court reached a determination that certain case-specific remedies were necessary⁵, and this Court cannot make its own determinations about appropriate remedies without a deeper exploration of how the decision to go on a media blitz was made. As the defense argued in their *Motion for an Order to Show Cause* (Doc. 504), it is premature at this point, without the benefit of further discovery, for the Court to craft the appropriate remedies.
21. The Court should grant the Motion to Compel with the provision that if any responsive materials consist of particularly sensitive work product, the disclosure of which may hinder the prosecution's ability to prosecute the case, the prosecution may produce those materials *in camera* for the Court's review to determine if redactions are necessary and appropriate prior to disclosing to the defense.

THEREFORE,

22. The Court will schedule a "show cause" hearing where it may investigate the charge of contempt, hear any answer, and examine witnesses presented by either side. At the conclusion of the hearing, pursuant to *Von Hake*, 759 P.2d at 1172, the Court will determine whether the following elements have been proven: 1) that the person cited for contempt knew what was required; 2) that the person had the ability to comply; and 3) that the person failed

that he did not believe his statements warranted it. From that point on, Leavitt did not participate further in Baum's case.

Leavitt, 2025 UT 46, ¶ 10.

⁵ See Exhibit D to Defendant's Motion for an Order to Show Cause (Doc. 504).

or refused to do so.⁶ Only upon a finding that all elements have been proven by clear and convincing evidence should the Court then hear from the parties as to what the appropriate remedies should be.

CONCLUSION

The facts which are now no longer in dispute are more than sufficient to support a show cause hearing as set forth in Utah Code § 78B-6-301(5) and the State should be ordered to produce all documents/information sought in the Defendant's supplemental discovery request dated April 3, 2026, and entered as Document 474 on the docket.

RESPECTFULLY SUBMITTED this 7th day of May, 2026.

/s/ Kathryn N. Nester
Kathryn N. Nester

/s/Richard G. Novak
Richard G. Novak

/s/ Michael N. Burt
Michael N. Burt

/s/ Staci Visser
Staci Visser

Attorneys for Defendant, Tyler James Robinson

⁶ As the defense argued in their Motion, because this is a civil contempt issue case law suggests that the element of "intentionality" is not a required finding. However, should this Court deem otherwise, the element of intent is clearly present nonetheless.

CERTIFICATE OF SERVICE

This is to certify that a true and correct copy of the foregoing was served via the Court's electronic filing system on the 7th day of May, 2026, which served all attorneys of record.

/s/ Kathryn N. Nester
Kathryn N. Nester

EXHIBIT A

BALLARD	LEAVITT	SUPREME COURT LEAVITT OPINION (citations removed)
Experienced senior attorney in Utah County Attorney's Office	The County Attorney for Utah County	"Leavitt's 'substantial experience in the practice of law' [was] an aggravating factor." (§64) "Comments by prosecuting attorneys, in particular, have the inherent authority of the government and are more likely to influence the public"(§39)
High profile case with international media attention	High profile case with statewide media attention	"While this may not have been Leavitt's intent, he spoke without due care at a time when he was center stage. " (emphasis added)(§61)
Statement made seven months after decision to seek death had been previously announced	Statement made while announcing decision to seek death	"Importantly, the remarks were made in relation to a capital criminal case, and as another comment to rule 3.6 explains, 'criminal jury trials will be most sensitive to extrajudicial speech.'" (§37)
Statement made after trial court entered pre-trial publicity order	Statement made before trial court entered pre-trial publicity order	The Supreme Court did not weigh this factor in the Leavitt opinion, but certainly the fact that a pretrial publicity order was in place at the time of Ballard's statements puts him in a worse position than Leavitt, who was facing no such order at the time of his statements.
Statements made directly to at least three print media representatives and at least one television news outlet, where he appeared on video. Statements then widely reported throughout national media outlets with no attempt to retract statements.	Statement made at a press conference, which was livestreamed and then briefly posted on County Attorney Office's Facebook page, and which the County Attorney's Office took steps to remove the same day.	"He knew his statements would be 'disseminated by means of public communication.'" (§26) "As the county attorney making a public announcement in a high-profile capital case, Leavitt reasonably should have known these statements had a substantial likelihood of

EXHIBIT A

		prejudicing the criminal proceedings.” (§45)
“Generally, when a bullet fragment analysis comes back as inconclusive, that means the fragment did not contain enough detail for the examiner to say one way or the other.” “There just aren’t enough marks on the fragment to make a conclusion one way or another” “the FBI and ATF are adding information to the initial reports, which prosecutors expect will include data supporting the initial conclusions.”	“this witness is credible” and “the witness’ testimony has been corroborated”	“He vouched for the credibility of the State’s witness.” (§36)
“We have ample evidence to demonstrate beyond a reasonable doubt that Tyler Robinson committed this murder” “we believe we will be able to overcome his presumption of innocence”	“we know things that the jury will never hear which helps us to believe and strengthens our belief that this man committed [this] murder”	“a prosecutor’s opinion of guilt is particularly likely to create prejudice” (§32) “the prosecution’s duty ‘in a criminal prosecution is not that it shall win a case, but that justice shall be done... This includes respecting the constitutional rights of the accused, like the presumption of innocence.” (§44)
Ballard continues to play a pivotal role on the prosecution team, frequently authoring and arguing key motions before the Court. In his response he argues that his statements were neither in violation of the Rules of Professional Responsibility nor a violation of the pretrial publicity order.	Following his press conference, Leavitt withdrew as counsel on the case and walled himself off from all future privileged information about the case.	“We also appreciate that he promptly took steps to rectify the damage he caused by walling himself off from the case, instructing his team to take the video of the press conference off of the County Attorney’s public Facebook page, and adjusting his practice for future press conferences. However, we note that he testified that he did so only because his deputy thought his conduct at the press conference had been problematic, not because he

EXHIBIT A

		thought what he had done was wrong.” ¶66)
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EXHIBIT B

From: [Christopher Ballard](#)
To: [Staci Visser](#); [Ryan McBride](#); [Chad Grunander](#); [Lauren Hunt](#); [David Sturgill](#); [Jeff Gray](#)
Subject: RE: Notice of Motion to Classify as Private
Date: Tuesday, January 13, 2026 3:55:40 PM
Attachments: [image002.png](#)
[image003.png](#)

Staci,

We served the Notice of Intent to Conduct Testing on the defense only, rather than filing it with the court, because we hoped that we would be able to resolve this issue without involving the court. But now that the court is involved, we do not believe that it is necessary to keep court filings private, or even file redacted versions, on this issue.

The ethical rules on pretrial publicity apply only to extrajudicial statements. Statements made in court, or in a court filing, are not extrajudicial statements and are presumptively public. So, our position is that the filings and argument on this issue should be public.

Christopher D. Ballard



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From: Staci Visser <staci@brownbradshaw.com>